

PASSED

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution 29-001
Amendments to Title 8 of the Chickasaw Nation Code
(Election Rules and Procedures)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section I of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the Office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously established rules and procedures for annual elections, and

WHEREAS, the Chickasaw Tribal Legislature desires to amend those rules and procedures.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 8 of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red, deletions are stricken through):

“SECTION 8-304 **RESIDENT AND NON-RESIDENT REGISTRATION.**

A. A Voter, residing within the boundaries of the Chickasaw Nation, must designate a Current residence on the tribal Voter's registration in order to determine their designated district within the Chickasaw Nation.

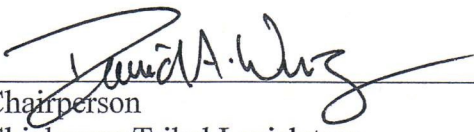
B. In accordance with Article VI, Section 4, of the Constitution, each Non-resident Voter shall choose one (1) district for the purpose of voting. The Non-resident Voter may affiliate with the district of his choice, in accordance with the provisions of Subsection A above, **Section 8-301** and ~~the provisions of Section 8-303.~~”

“SECTION 8-404 **NO BALLOT WHEN NO CONTEST.**

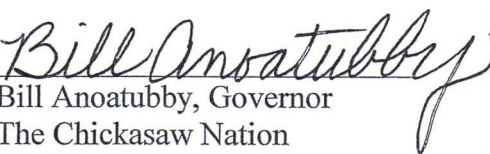
A. If only one (1) Candidate files for an office, no ballots shall be sent regarding that candidacy. The act of filing for office shall be counted as an affirmative vote for such Candidate's selection, therefore the Candidate shall be elected by a one-vote margin.

B. If only one (1) Candidate files for an office, the Election Secretary/Tribal Registrar shall certify that Candidate as elected on **the last** Tuesday ~~of following the third~~ **Monday** in July.”

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on November 18, 2011, by a vote of 13 ayes, 0 nays, 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: NOV 18 2011

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Explanation: This resolution approves amendments to Title 8 of the Chickasaw Nation Code. Section 8-304 is amended to make reference to related regulations regarding voter registration and Section 8-404 is amended to correct the definition of election day.

Presented By: Election Rules and Regulations Ad Hoc Committee